

ELIZABETH II



1986 CHAPTER vii

An Act to authorise the Swansea City Council to construct a barrage and lock across the river Tawe in the city of Swansea and other works, and to acquire lands; to provide for the control and development of part of the river for recreational navigation; to confer further powers on the Council; and for other purposes.

[16th April 1986]

WHEREAS the city of Swansea is under the management and local government of the Council of that city (hereinafter referred to as "the Council"):

And whereas it is expedient that the Council should be empowered to construct in and about the tidal section of the river Tawe the barrage and lock and other works authorised by this Act, and to acquire lands therefor, so as to secure the development and the improvement both of the amenities of that section of the river and of the lands adjacent thereto:

And whereas it is expedient that provision should be made for the control and development of part of the river for recreational navigation and that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines or situations and levels of the works by this Act authorised, such plans showing also the lands which the Council may acquire or use under the powers of this Act, and a book of reference to such plans containing the names of the owners or reputed owners, lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited in the office of the Clerk of the Parliaments, House of Lords and in the Private Bill Office of the House of Commons and with the county clerk of the West Glamorgan County Council which plans, sections and book of reference are in this Act referred to respectively as the deposited plans, the deposited sections and the deposited book of reference:

1972 c. 70. And whereas in relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title
and
commence-
ment.

1.—(1) This Act may be cited as the Swansea City Council (Tawe Barrage) Act 1986.

(2) Part IV (The upstream river) shall come into operation upon such day following the completion of the construction and bringing into operation of Work No. 1 as may be fixed for the purpose in accordance with subsection (3) below by resolution of the Council; and the remainder of this Act shall come into operation upon its passing.

(3) The Council shall publish in a newspaper circulating in the city of Swansea notice—

(a) of the passing of such resolution and of the day fixed thereby; and

(b) of the general effect of the said Part IV;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the notice.

(4) A photostatic or other reproduction certified by the proper officer of the Council to be a true reproduction of a page, or part of a page, of any newspaper being a page or part of a

page bearing the date of its publication and containing the notice mentioned in subsection (3) above shall be evidence of the publication of the notice, and of the date of publication.

PART I
—*cont.*

2.—(1) In this Act, unless the subject or context otherwise requires— Interpretation.

“the Act of 1965” means the Compulsory Purchase Act 1965; 1965 c. 56.

“the Council” means the Swansea City Council;

“the limits of deviation” means the limits of deviation shown on the deposited plans;

“new rights” means rights to be created in favour of the Council, including rights restrictive of the user of land; and the expression “new right” shall be construed accordingly;

“the statutory maximum” means the prescribed sum as defined in section 32 (9) of the Magistrates’ Courts Act 1980; 1980 c. 43.

“tidal work” means so much of the works as is on, under or over tidal waters or tidal lands below the level of mean high-water springs;

“the tribunal” means the Lands Tribunal;

“the Trinity House” means the Corporation of Trinity House of Deptford Strond;

“vessel” means every description of vessel, whether with or without means of propulsion of any kind, and includes anything constructed or used to carry persons, goods, plant or machinery, or to be propelled or moved, on or by water, a seaplane on or in the water and a hovercraft within the meaning of the Hovercraft Act 1968; 1968 c. 59.

“the water authority” means the Welsh Water Authority;

“the works” means the works authorised by subsection (1) of section 4 (Power to construct works) of this Act and any works constructed in connection with or for the purposes of those works, and includes those works as extended, enlarged, altered, replaced or relaid under subsection (3) of that section.

(2) References in this Act to grid references refer to the map co-ordinates on the National Grid used by the Ordnance Survey and shall be construed as if the words “or thereabouts” were inserted after each such grid reference.

(3) Unless the context otherwise requires, any reference to a work identified by a number of such work shall be construed as a reference to the work of that number authorised by this Act.

PART I
—cont.

(4) Any reference in this Act to a proper officer shall in relation to any purpose and the Council or any area, be construed as a reference to an officer appointed for that purpose by the Council or for that area, as the case may be.

(5) References in this Act to Associated British Ports shall be construed as references to that body as for the time being harbour authority for and conservators of the harbour of Swansea.

Application
of
enactments.
1845 c. 20.

3.—(1) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof are hereby incorporated with this Act and, as so incorporated, shall have effect as if—

(a) for the words “the period by the special Act limited for the completion of the railway” there were substituted the words “the period of five years from the commencement of the construction of the works authorised by the special Act”;

(b) the expression “the company” meant the Council; and

(c) the expression “the railway” meant the works authorised by this Act and “the centre of the railway” meant the centre line of the works respectively.

1981 c. 67.

(2) (a) Part I of the Act of 1965 (except section 4, section 27, and paragraph 3(3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

(b) In section 11 (1) of the Act of 1965, as so applied, for the words “fourteen days” there shall be substituted the words “three months”.

1845 c. 18.

(c) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS

Power to
construct
works.

4.—(1) Subject to the provisions of this Act, the Council may in the communities of Castle and St. Thomas in the city of Swansea in the lines or situations and within the limits of deviation and according to the levels shown on the deposited sections make and maintain the works hereinafter described,

together with all necessary works and conveniences connected therewith:—

PART II
—cont.

Work No. 1 A barrage across the river Tawe, incorporating a lock and lock gates and control building at its western end with a fish pass, overflow weirs and spillways commencing by a junction with the existing pitched slope of the east bank of the river at grid reference SS 6655 9265 and terminating by a junction with the existing sea wall on the west bank of the river at grid reference SS 6643 9256.

Work No. 2 A line or lines of pipes in the bed of the river Tawe, with pumping machinery incident thereto, commencing by a junction with the existing outfall culvert on the western river wall at grid reference SS 6616 9290, thence proceeding first in an easterly direction across the river and thereafter downstream in a south-easterly direction and terminating beyond the downstream face of Work No. 1.

Work No. 3 A line or lines of pipes with pumping machinery incident thereto, commencing by a junction with the existing sewer in King's Road at grid reference SS 6623 9319, thence proceeding first in a south-easterly direction along that road and thereafter proceeding in a west-south-westerly direction to the river Tawe and terminating by a junction with Work No. 2 at grid reference SS 6633 9293.

Work No. 4 An access road, commencing at the commencement of Work No. 1 and terminating by a junction with King's Road at grid reference SS 6657 9278.

(2) Subject to section 5 of the Telecommunications Act 1984, the Council may install and maintain telecommunication apparatus and run telecommunication systems (such apparatus and systems having the meanings given by that Act, including the extended definition of telecommunication apparatus in Schedule 2 thereto) on or over land whether or not a street, for the purpose of telecommunication or of electrical communication between any place and any part of the works or between different parts of those works. 1984 c. 12.

(3) The Council may within the limits of deviation including the vertical limits prescribed by section 8 (Power to deviate) of this Act, extend, enlarge, alter, replace or relay any of the works described in subsection (1) above.

(4) Section 29 of the Land Drainage Act 1976 shall not apply to the construction of the works. 1976 c. 70.

PART II
—cont.
Subsidiary
works.

5.—(1) Subject to the provisions of this Act and within the limits of deviation, the Council in connection with or for the purposes of the works may—

- (a) make junctions and communications between any of those works and any existing streets, roads or ways;
- (b) make, provide and maintain all necessary and convenient walls, cofferdams, banks, embankments, borrow pits, hards, moorings, boat hoists, pontoons, jetties, piling, fences, culverts, drains, intakes, syphons, watercourses, weirs, sluices, mattresses, pitching, droves, bridges, roads, footpaths, and all such mains, pipes, cables, wires, meters, pumps, machinery, works and appliances as may be required;
- (c) dispose of spoil or other material excavated in the execution of the works;
- (d) execute any works for the protection of any adjoining lands, buildings or structures;
- (e) remove, alter, divert or stop up any drain, sewer or watercourse, the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any watercourse;
- (f) alter any mains, pipes, wires and other works and apparatus for conveying or transmitting water, gas, electricity or petroleum (as defined in the Petroleum (Consolidation) Act 1928) or for telecommunication.

1928 c. 32.

(2) In the exercise of the powers conferred by this section, the Council shall cause as little detriment and inconvenience to any person as circumstances admit and, subject to section 14 (Temporary closing of river in connection with works) of this Act, shall pay compensation to all persons for any damage sustained by them by reason of the exercise by the Council of such powers. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

(3) The powers conferred by this section and section 4 (Power to construct works) of this Act in so far as they authorise the carrying out of any works in, on, over or under any highway shall not be exercised by the Council without the consent of the highway authority, which consent shall not be unreasonably withheld but may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority may require, and any question whether such consent is unreasonably withheld or any conditions so imposed are unreasonable shall be determined by arbitration:

Provided that consent under this subsection shall not be necessary where consent for the carrying out of the works is required by the Public Utilities Street Works Act 1950.

1950 c. 39.

6. Notwithstanding anything in this Part of this Act, any pipes to be laid or placed under the powers contained in this Part of this Act, or telecommunication apparatus or telecommunication systems installed under subsection (2) of section 4 (Power to construct works) of this Act, under or over any tidal waters or tidal lands below the level of mean high-water springs shall be laid or placed at such depth under, or such height over, tidal waters or tidal lands as the Secretary of State may require.

PART II
—cont.

Pipes, etc.,
under or over
tidal waters or
tidal lands.

7. The Council may—

(a) dredge, scour and cleanse the banks and bed of the upstream river (as defined in section 37 (Interpretation of Part IV) of this Act) and, with the consent of Associated British Ports, so much of the sea as lies within the limits of the harbour prescribed by subsection (2) of section 15 (Extension of limits of Swansea harbour, etc., and power to dredge) of the British Transport Docks Act 1978;

Dredging
and other
operations in
river Tawe.

1978 c. xiv.

(b) in connection with or for the purposes of the works moor or anchor vessels temporarily in the river Tawe:

Provided that no materials so dredged by them shall be deposited below the level of high-water springs except in such places and in accordance with such conditions and restrictions as may be approved or prescribed by the Secretary of State.

8. The Council in constructing the works may deviate laterally from the lines or situation thereof shown on the deposited plans to any extent not exceeding the limits of deviation and may deviate vertically from the levels of the works shown on the deposited sections to any extent not exceeding three metres either upwards or downwards, but in the case of the overflow weirs and fish pass incorporated in Work No. 1 by not more than 500 millimetres upwards or downwards from the levels so shown.

Power to
deviate.

9.—(1) The Council during and for the purpose of the execution of the works may temporarily stop up and divert and interfere with any road, bridleway or footpath and may for any reasonable time divert the traffic from any such road, bridleway or footpath and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road, bridleway or footpath from passing along and using the same.

Temporary
stoppage of
roads,
footpaths and
bridleways.

(2) Reasonable access shall be provided for foot passengers, with or without animals, bona fide going to or from any such land, house or building.

PART II
—cont.

(3) The powers of this section shall not be exercised—

- (a) with reference to any private road, which is owned by Associated British Ports, except after consultation with them;
- (b) with reference to any road, bridleway or footpath, except with the consent of the highway authority and, in the case of a road, bridleway or footpath which is vested in any person other than the highway authority, that person, and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority or other person may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by arbitration.

Notice to
police.

10. Before breaking up or otherwise interfering with any road in connection with the construction of the works, the Council shall (except in a case of emergency) give 14 days' notice to the chief officer of police of their intention so to do.

Agreements
with owners of
land and
others for
execution of
works.

11.—(1) The Council may enter into and carry into effect agreements or arrangements with the water authority or the owners of or other persons interested in any land in or through which any of the works is or may be constructed or the drainage of which may be affected by the construction of the work for or with respect to the doing of anything which may be rendered necessary or convenient by reason or in consequence of the exercise of the powers of this Act.

(2) Any such agreement may provide for—

- (a) the payment by the Council of or the making of contributions by them towards the cost incurred or to be incurred by the water authority or any such owners or other persons in or in connection with the doing of any such thing; or
- (b) the payment by the Council of compensation for any injury suffered by the water authority or any such owners or other persons by reason or in consequence of the execution by the Council of the work.

Power to
use bed and
banks of
watercourses.

12.—(1) Subject to the provisions of this Act, the Council may for the purposes of the works enter upon and use so much of the bed or banks of any watercourse as is within the limits of deviation and as may be required for those purposes, and they may also for the purposes of executing and placing temporary

works and conveniences in connection with the works occupy and use temporarily so much of such bed and banks within the said limits as may be required for those purposes or any of them.

PART II
—cont.

(2) The Council shall, not less than 7 days before entering upon and using the bed or banks of any watercourse as aforesaid—

- (a) give notice of their intention to the water authority and to the occupier of the land comprising such bed or banks and shall pay compensation to all persons interested in that land for any damage sustained by them or liability to which they may become subject in respect of that land by reason of the exercise of the powers of this section, and any question as to the amount of the compensation to be so paid shall be determined by the tribunal;
- (b) where the watercourse is situate downstream of the site of Work No. 1, shall give notice of the proposed entry to Associated British Ports.

13.—(1) Work No. 1 shall be deemed to have been constructed under a licence under section 36 of the Water Resources Act 1963 granted by the water authority and, except as may be otherwise provided by this Act, the provisions of the said Act of 1963 relating to licences granted under section 36 of that Act shall apply to the licence deemed by this section to have been granted under that section as they apply to those so granted. Work No. 1 deemed to be constructed under impounding licence. 1963 c. 38.

(2) Except as provided in paragraph (10) of section 27 (For protection of water authority) of this Act, the following provisions shall have effect as conditions of the licence under which Work No. 1 is deemed to have been constructed:—

- (a) the Council shall at all times during the construction of Work No. 1, or any extension, enlargement, alteration or replacement of Work No. 1 affecting the fish pass, maintain the prescribed minimum flow of water at a point immediately below the site of Work No. 1;
- (b) the Council shall at all other times after completion of Work No. 1 (including the fish pass required under the Salmon and Freshwater Fisheries Act 1975) maintain 1975 c. 51. a minimum flow of water through the fish pass, not less than the prescribed minimum flow;
- (c) in these conditions “the prescribed minimum flow” means a flow not less than that for which the fish pass, as approved by the Minister of Agriculture, Fisheries and Food under the said Act of 1975, is designed or adapted.

PART II
—*cont.*
Temporary
closing of
river in
connection
with works.

14.—(1) Notwithstanding anything in any other enactment or in any rule of law, but without prejudice to any requirement imposed on the Council by or under section 22 (Operation of sluices and lock gates) of this Act, the Council may, in executing or doing in, on, under, or over the river Tawe any works or things authorised by or under the foregoing provisions of this Act, close the river Tawe or any part thereof to navigation:

Provided that—

- (a) the Council shall so execute or do such works or things as to ensure that at any time no more of the river Tawe is so closed than is reasonably necessary in all the circumstances;
- (b) if it becomes necessary to close the river Tawe completely to navigation, the Council shall use their best endeavours to secure that the minimum obstruction, delay or interference is caused to vessels which may be using or intending to use the river and that the minimum interference is caused to persons who may be using or intending to use the river for the purposes of trade or business (including the use of river water for cooling purposes); and
- (c) the Council shall not exercise the powers of this subsection as respects any part of the river Tawe which is seaward of an imaginary straight line drawn across the river downstream of Work No. 1 between grid reference SS 6659 9251 and grid reference SS 6656 9230, except with the consent of Associated British Ports.

(2) Without prejudice to the provisions of section 3 (Application of enactments) of this Act, the Council shall not be liable for any costs, damages or expenses whatsoever incurred by any person as a result, directly or indirectly, of any closure of the river under the foregoing subsection.

Tidal works
not to be
executed
without
approval of
Secretary of
State.

15.—(1) A tidal work shall not be constructed, extended, enlarged, altered, replaced or relaid except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by him before the work is begun.

(2) If a tidal work is constructed, extended, enlarged, altered, replaced or relaid in contravention of this section or of any condition or restriction imposed under this section—

- (a) the Secretary of State may by notice in writing require the Council at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of 30 days from the date when the notice is served upon

the Council they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

- (b) if it appears to the Secretary of State urgently necessary so to do, he may remove the tidal work, or part of it, and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Council.

PART II
—cont.

16.—(1) In case of injury to or destruction or decay of a tidal work, or any part thereof, the Council shall forthwith notify the Trinity House and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the Trinity House shall from time to time direct.

(2) If the Council fail to notify the Trinity House as required by this section or to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

17.—(1) Where a tidal work is abandoned or suffered to fall into decay, the Secretary of State may by notice in writing require the Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

(2) Where a work authorised by this Act and consisting partly of a tidal work and partly of works on or over land above the level of mean high-water springs, is abandoned or suffered to fall into decay and that part of the work on or over land above the level of mean high-water springs is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of 30 days from the date when a notice under this section is served upon the Council, they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Council.

18. The Secretary of State may at any time, if he deems it expedient, order a survey and examination of a tidal work constructed by the Council, or of the site upon which it is proposed to construct the work, and any expenditure incurred

Survey of tidal works.

PART II
—cont.

by the Secretary of State in any such survey and examination shall be recoverable from the Council.

Permanent
lights on tidal
works.

19.—(1) After the completion of a tidal work, the Council shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Trinity House shall from time to time direct.

(2) If the Council fail to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

Lights on tidal
works during
construction.

20.—(1) The Council shall at or near a tidal work during the whole time of the construction, extension, enlargement, alteration, replacement or relaying thereof, exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

(2) If the Council fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

Saving for
Trinity House.

21. Nothing in this Part of this Act shall prejudice or derogate from the powers, rights and privileges of the Trinity House.

Operation of
sluices and
lock gates.

22.—(1) Notwithstanding anything in any enactment other than this Act or in any rule of law, the Council may operate the lock gates, sluices and other works comprised in Work No. 1, or any of them, to control the level of the river Tawe upstream of Work No. 1, to test those gates, sluices or other works, to improve the regime of the river for any purpose or otherwise, and in such manner and for such periods as they think fit.

(2) Subsection (1) above shall have effect notwithstanding that the river Tawe will at Work No. 1 be closed to navigation and that the passage of vessels in the river may thereby be obstructed, delayed or interfered with, and the Council shall not thereby be liable for any costs, damages or expenses whatsoever incurred by any person as a result, directly or indirectly, of such obstruction, delay or interference; but in exercise of the powers of that subsection, the Council will use all reasonable means to minimise such obstruction, delay or interference.

(3) Without prejudice to subsection (1) above, the Council shall operate the said lock gates during such periods of the year, at such times on any day in any of those periods and upon such

occasions as appear to them in their discretion reasonably necessary for the passage of vessels requiring passage through the same.

PART II
—cont.

(4) Except as required under paragraph (9) of section 27 (For protection of water authority) of this Act, the Council shall, in the operation of the lock, lock gates, sluices and other works forming part of Work No. 1, take into account any effect of such operations on the conservation of flora and fauna.

(5) In the exercise of the powers of this section the Council shall from time to time consult Associated British Ports and the water authority.

23.—(1) Any person who, without lawful authority, closes or opens or attempts to close or open, any of the equipment or machinery comprised in Work No. 1, or in any other way interferes, or attempts to interfere, with the same or the operation thereof, shall be liable on summary conviction to a fine not exceeding level 4 on the standard scale or on conviction on indictment to a fine.

Misuse of
equipment or
machinery.

(2) A person shall not be guilty of an offence under subsection (1) above as respects any act done in an emergency in order to avoid danger to any person.

24. A person who intentionally obstructs any person acting in the execution of this Act or without reasonable excuse pulls up any peg or stake driven into the ground for the purposes of setting out the line, level or site of any works authorised by this Act, or otherwise interferes with equipment or materials used in the construction of those works, shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

Obstructing
execution of
Act.

25.—(1) On and after such day as may be fixed in accordance with subsection (3) of section 1 (Short title and commencement) of this Act, by resolution of the Council—

Alteration
of limits
of Swansea
Harbour,
enactments
disapplied,
repeals, etc.

(a) the upstream limit in the river Tawe of the harbour of Swansea, within which the powers of the dock and harbour master of Associated British Ports may be exercised or over which the powers of Associated British Ports as conservators exist under the Swansea Harbour Acts 1854 to 1919 (in this section referred to as “the Swansea Acts”) and the Harbours, Docks, and Piers Clauses Act 1847 as incorporated therewith, shall become an imaginary straight line drawn across the river Tawe downstream of Work No. 1 between grid reference SS 6659 9251 and grid reference SS 6656 9230;

1847 c. 27.

PART II
—cont.

- (b) the provisions of the Swansea Acts, other than the excepted provisions, and the provisions of the said Act of 1847 and of all byelaws, rules and regulations of Associated British Ports hitherto in force within the harbour of Swansea shall, so far as they apply, cease to apply to so much of that harbour as lies upstream of the said imaginary straight line or to be enforceable by Associated British Ports.

In this paragraph “the excepted provisions” means such protective provisions for the benefit of any person as are for the time being in force.

- 1854 c. cxxvi. (2) The enactments in the Swansea Harbour Act 1854 specified in column (3) of Schedule 1 to this Act (which include enactments that were obsolete or spent before the passing of this Act) are hereby repealed.

For
protection of
Associated
British Ports.

26. For the protection of Associated British Ports (in this section referred to as “A.B. Ports”) the following provisions shall, unless otherwise agreed in writing between the Council and A.B. Ports apply and have effect:—

- (1) In this section—

“the main navigation areas” means the main navigable channels within the harbour of Swansea leading from the Outer Fairway Buoy in Swansea Bay situate 1,680 metres or thereabouts in a south-south-westerly direction seaward from the seaward extremity of the eastern breakwater and thence (by an imaginary straight line drawn between the extremities of that breakwater and of the west pier) to the dock entrance to the docks of A.B. Ports at Swansea, and to the harbour installations of A.B. Ports in the river Tawe upstream of that dock entrance, and includes the enclosed dock system of the harbour of Swansea, on the eastern side of the river;

“plans” includes sections;

“specified operation” means any operations carried out under paragraph (a) of section 7 (Dredging and other operations in river Tawe) of this Act and the operation of the lock incorporated in Work No. 1:

- (2) (a) The Council shall, except in an emergency, before commencing any of the works submit to A.B. Ports for their reasonable approval plans of that work showing the general mode of construction or carrying out thereof:

Provided that if A.B. Ports do not within 42 days after the receipt of any such plans signify to the Council their disapproval thereof and the grounds of their disapproval they shall be deemed to have approved them;

PART II
—cont.

- (b) If the Council have to construct any of the works in an emergency, they shall immediately inform A.B. Ports and shall submit to A.B. Ports the plans referred to in sub-paragraph (a) above as soon as practicable thereafter;
- (c) If any work referred to in sub-paragraph (b) above is such as to affect the main navigation areas, the Council shall so far as practicable construct that work as a temporary work for the purpose of meeting the emergency and shall after the emergency has passed to the reasonable satisfaction of A.B. Ports remove or alleviate the interference with navigation so far as reasonably possible;
- (3) Subject to the provisions of this section, none of the works shall be constructed or carried out except in accordance with such plans as may be approved, or as are deemed to be approved by A.B. Ports or, if such approval be withheld, as may be settled by the Secretary of State;
- (4) (a) If there shall be any inconsistency between any plans approved or deemed to be approved by A.B. Ports under the provisions of this section and the plans approved by the Secretary of State under section 15 (Tidal works not to be executed without approval of Secretary of State) of this Act or any conditions or restrictions imposed by him under that section, the work in question shall be constructed in accordance with the plans approved by the Secretary of State and subject to the conditions or restrictions imposed by him;
- (b) Upon submitting any plans and sections to the Secretary of State under section 15 (Tidal works not to be executed without approval of Secretary of State) of this Act, the Council shall send a copy thereof to A.B. Ports;
- (5) The Council shall at all reasonable times afford to the duly authorised representative of A.B. Ports all reasonable facilities for inspecting the works in the course of construction;
- (6) (a) If during the construction of any of the works or the carrying out of a specified operation within 10

PART II
—cont.

years after the completion of such construction and in consequence of such construction or carrying out, any accumulation of silt or other material shall be created within the main navigation areas which shall cause obstruction or danger to navigation, the Council, if so requested by A.B. Ports before the expiry of the period of 10 years after such completion, shall remove such accumulation of silt or other material and, if they refuse or fail so to do, A.B. Ports may themselves cause the work to be done;

- (b) Should any accumulation in consequence of such construction or carrying out arise within the said period of 10 years and be removed in accordance with sub-paragraph (a) above, the Council if so requested by A.B. Ports before the expiry of a period of 20 years after completion of the work shall from time to time remove any further such accumulation; but no request by A.B. Ports pursuant to this sub-paragraph shall give rise to any obligation upon the Council if made after the expiry of five years following the removal by the Council under this sub-paragraph of the last such accumulation;

The Council shall be responsible for 85 per centum of the reasonable cost of any removal of an accumulation under sub-paragraph (a) or (b) above, and accordingly—

(i) in any case where the Council undertake that removal, the Council may recover from A.B. Ports 15 per centum of the reasonable cost thereof;

(ii) in any case where A.B. Ports undertake that removal, A.B. Ports may recover from the Council 85 per centum of the reasonable cost thereof;

- (c) For the purposes of sub-paragraphs (a) and (b) above, the date of completion of a work shall be the date on which it is brought into use:
- (7) Any difference arising between the Council and A.B. Ports under the foregoing provisions of this section (other than a difference as to the construction of this section or as to the approval of plans under paragraph (3) or (4) of this section) shall be determined by arbitration:
- (8) The Council shall upon any occasion when they notify the Trinity House, as required by section 16 (Provision against danger to navigation) of this Act, forthwith give the like notification to A.B. Ports; and shall forthwith notify A.B. Ports of any directions given to the Council by the Trinity House or, as the case may be, the Secretary of State under section 19

(Permanent lights on tidal works) or section 20 (Lights on tidal works during construction) of this Act:

PART II
—cont.

- (9) No spoil or other material shall in the exercise of the powers of this Act be deposited on any land owned by A.B. Ports or, unless otherwise approved or prescribed by the Secretary of State, anywhere for the time being within the jurisdiction of A.B. Ports, except with the written consent of A.B. Ports; and the Council shall not deposit spoil or other material elsewhere below the level of high-water springs in the exercise of the said powers except after the expiry of 42 days following written notification to A.B. Ports by the Council of the Council's intention in that behalf.

27. For the protection of the water authority the following provisions shall, unless otherwise agreed in writing between the Council and the water authority, apply and have effect:—

For protection
of water
authority.

- (1) In this section—

“construction” includes execution and placing, extension, enlargement, alteration, replacement or relaying, and “construct” and “constructed” have corresponding meanings;

“plans” includes descriptions, drawings and specifications;

“protected fishery” means the river Tawe and fish in, or migratory fish proceeding to or from, the river Tawe upstream of Work No. 1 and the spawn or food of fish in the river Tawe;

“specified work or operation” means Works Nos. 1 to 3 and any works constructed in connection with or for the purposes of any of those works and any operations carried out under section 5 (Subsidiary works), section 7 (Dredging and other operations in river Tawe) or section 28 (Power to acquire lands) of this Act which may affect the bed of the river Tawe or the flow or quality of water therein or cause obstruction to the free passage of fish therein; and “specified work” and “specified operation” shall be construed accordingly;

“the upstream river” has the same meaning as in section 37 (Interpretation of Part IV) of this Act:

- (2) Unless otherwise agreed between the Council and the water authority the works and conveniences connected with Work No. 1 shall include lock gates and sluices sufficient to release between any one high tide and the following low tide all water impounded by that work:

PART II
—cont.

- (3) Notwithstanding section 8 (Power to deviate) of this Act, the levels of the sills of the overflow weirs, fish pass, lock and sluices forming part of Work No. 1 shall be approved by the water authority, but if the water authority do not, within 42 days after receipt of proposals specifying any such level, whether or not on consideration of plans submitted under paragraph (6) below, signify their disapproval, and the grounds of their disapproval, they shall be deemed to have approved thereof:
- (4) For the purpose of measuring and recording the minimum flow prescribed by section 13 (2) of this Act the Council shall provide and maintain in a position approved by the water authority a gauge so approved to measure and record the flow of water passing over the sill of the fish pass forming part of Work No. 1 and shall maintain a continuous record of the flow of water so passing and send to the water authority one copy of the record at the end of each month:
- (5) Works Nos. 2 and 3 shall be completed and brought into operation before the commencement of impounding by means of Work No. 1:
- (6) (a) Before commencing any specified work or operation the Council shall submit plans thereof to the water authority for their reasonable approval and shall not commence the same until such plans have been approved by the water authority:
- Provided that if the water authority do not within 42 days after the receipt of any such plans or such shorter period as may be agreed by the water authority having regard to prior consultation on the plans signify to the Council their disapproval thereof and the grounds for their disapproval they shall be deemed to have approved thereof:
- (b) Any difference arising between the Council and the water authority under paragraph (2) or (3) or under sub-paragraph (a) above shall be settled by the Secretary of State on a reference to him by the Council or the water authority after notice to the other of them;
- (c) In the case of any specified work or operation carried out in an emergency the Council shall not be required to submit plans thereof before commencing the same but they shall give to the water authority such notice and such particulars thereof as may be practicable in the circumstances before the work or operation is commenced, with further particulars and plans as soon as reasonably practicable thereafter:

- (7) Upon signifying their approval of the plans of any specified work or operation, or considering notice of any specified work or operation carried out in an emergency, the water authority may specify any steps reasonably required for the protection of the protected fishery which should be taken by the Council during the carrying out of the work or operation:
- (8) (a) Subject to the provisions of this section, a specified work shall not be constructed and a specified operation shall not be carried out except in accordance with such plans as may be approved or deemed to be approved by the water authority as aforesaid or settled by arbitration and in accordance with any requirement made by the water authority under paragraph (7) above or settled by arbitration, and they shall be constructed or carried out in accordance with those plans and any such requirements to the reasonable satisfaction of the engineer of the water authority who shall be given reasonable notice of the date and time on and at which the work or operation is to be commenced;
- (b) The Council shall at all reasonable times afford to the engineer of the water authority and his duly authorised representatives access to such specified work or operation (other than any dredging operation) for the purpose of inspection:
- (9) (a) In exercise of the powers of section 22 (Operation of sluices and lock gates) of this Act the Council shall release all or part of the impounded water as reasonably required by the water authority to protect the quality of the water in the upstream river or to protect fisheries in the river Tawe;
- (b) Except in case of emergency, notice of any requirement under sub-paragraph (a) above shall be given in writing by the duly authorised officer of the water authority to the chief executive and town clerk of the Council, or to such other officer as he may, by notice to the water authority, direct, and shall be so given as long as possible, but not more than 14 days nor less than 24 hours, before the requirement is to take effect;
- (c) In case of emergency such a notice may be given orally and shall be implemented forthwith but shall be confirmed as soon as may be by notice in writing as provided in sub-paragraph (b) above;
- (d) In making any requirement under this paragraph the water authority shall have regard to the safety of persons using the river Tawe, but nothing in this sub-

PART II
—cont.

paragraph shall be construed as imposing, either directly or indirectly, any form of duty or liability to which the water authority would not otherwise be subject which is enforceable by proceedings before any court:

- (10) On any occasion on which all or part of the water impounded by Work No. 1 is released, whether in emergency giving rise to risk of death or personal injury (in which case the Council shall as soon as practicable notify the water authority and confirm the same in writing), or in pursuance of a requirement made by the water authority under paragraph (9) above, or otherwise with the prior approval of the water authority given in writing, so that the level of water impounded falls below the level of the sill of the fish pass forming part of Work No. 1, the Council shall be relieved of the obligation to maintain the minimum flow of water through the fish pass until such time as the water impounded on the closing of the lock gates or, as the case may be, sluices after the water has been so released, reaches the said level of the sill of the fish pass:

Provided that during any such refilling of the upstream river after any such release the Council shall be entitled, so far as it is practicable to do so, to operate the lock gates for navigation before the level of water impounded has reached the level of the sill of the fish pass:

- (11) (a) Plans of any specified work shall not be submitted by the Council to the Secretary of State for his approval under section 15 (Tidal works not to be executed without approval of Secretary of State) of this Act until plans of that work have been approved by the water authority or settled by the Secretary of State under paragraph (6) (b) above, with or without requirements under paragraph (7) above, and if, on the submission of plans to the Secretary of State, he requires any alteration of the plans so approved or settled under this section, or of any such requirement relating thereto, the Council shall, not less than 28 days before commencing the work, inform the water authority of any such alteration;
- (b) Subject to compliance with sub-paragraph (a) above, if there shall be any inconsistency between any plans approved or deemed to be approved by the water authority or settled by arbitration under this section, or any such requirement relating thereto, and the plans approved by the Secretary of State under the said section 15, or any conditions or restrictions

imposed by him under that section, the specified work shall be constructed in accordance with the plans approved by the Secretary of State and subject to the conditions or restrictions imposed by him:

PART II
—cont.

- (12) The Council shall be responsible for and make good to the water authority all costs, charges, expenses and losses which may be occasioned to, suffered by, or reasonably incurred by the water authority in taking action—

(a) after notice in writing to the Council, to protect the protected fishery against anticipated damage; or

(b) to remedy any damage to that fishery;

being damage anticipated or suffered by reason or in consequence of the execution of the works or operations authorised by this Act, or the failure or want of repair of the works, or in consequence of any act or omission of the Council, their contractors, agents, workmen or servants in connection with those works or operations:

- (13) The Council shall indemnify and hold harmless the water authority from all claims, demands or expenses which may be made on or against them or which they may have to pay by reason or in consequence of any injury or damage which may be caused or result to the river Tawe so as to impair its efficiency as a drainage channel by or in consequence of the construction of any specified work or of the failure or want of repair thereof or in consequence of any act or omission of the Council, their contractors, agents, workmen or servants whilst engaged upon the work:

Provided that the water authority shall give to the Council reasonable notice of any such claim or demand as aforesaid and no settlement or compromise thereof shall be made without the agreement of the Council:

- (14) The fact that any work or thing has been executed or done in accordance with a plan approved or deemed to be approved by the water authority or to their satisfaction or in accordance with any directions or award of an arbitrator or in accordance with any plans approved by the Secretary of State and any conditions or restrictions imposed by him, shall not relieve the Council from any liability under the provisions of this section:

PART II
—*cont.*

- (15) Except as provided in paragraph (6) (b) above, any difference arising between the Council and the water authority under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

PART III

LANDS

Power to
acquire
lands.

28.—(1) Subject to the provisions of this Act, the Council may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of—

- (a) the works or obtaining access thereto;
- (b) obtaining materials for the construction of the works, or depositing spoil or other material excavated during the construction thereof;

or otherwise for the purposes of this Act or other purposes connected therewith:

Provided that no spoil or other material shall by virtue of the powers of this section be deposited below the level of high-water springs except in such places and in accordance with such conditions and restrictions as may be approved or prescribed by the Secretary of State.

(2) Without prejudice to subsection (1) above, the Council may enter upon, take and use the lands so delineated and described and forming part of the upstream river (as defined in section 37 (Interpretation of Part IV) of this Act).

(3) (a) The powers of the Council for the compulsory acquisition of lands under this section shall not be exercised after 31st December 1989.

(b) The power to acquire compulsorily any land shall for the purposes of this subsection be deemed to have been exercised if before 31st December 1989, notice to treat has been served in respect of that land.

Correction of
errors in
deposited
plans and
book of
reference.

29.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Council after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the

justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

PART III
—cont.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the county clerk of the West Glamorgan County Council, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Council to take the land or an easement therein (as the case may be) and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

30.—(1) (a) The Council may, instead of acquiring any land under section 28 (Power to acquire lands) of this Act, acquire compulsorily such new rights as they require over or in the land.

Power to
acquire new
rights only.

(b) Notwithstanding the provisions of subsection (1) of section 28 (Power to acquire lands) of this Act or paragraph (a) above, the Council shall not acquire compulsorily under the powers of this Act, except for the purposes of Work No. 3, any interest in lands forming part of King's Road (numbered on the deposited plans 1) other than a new right by way of an easement of way for all purposes for affording access to Work No. 1 by way of Work No. 4.

(2) Any new right so acquired shall, as respects the burden of the right, run with the land and be enforceable by the Council against the estate and interest of every person to or for whom compensation or (where the new right is acquired by agreement) the agreed purchase price is paid and all persons deriving title by, through or under that person without any limit of time and as though, as respects the benefit of the right—

(a) the Council had at all material times been the absolute owners in possession of ascertained land adjacent to the land subject to the burden of the right and capable of being benefited thereby; and

(b) the right was created or imposed by a grant or covenant expressed to be for the benefit of that adjacent land.

(3) Any new right acquired under this section, whether compulsorily or by agreement, shall be a local land charge.

(4) (a) The Council may give notice to treat in respect of any new right, describing the nature thereof; and the Act of 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory acquisition of new

PART III
—cont.

rights under subsection (1) above as it applies to the compulsory acquisition of land so that, in appropriate contexts, references in that Act to land are read as referring, or as including references, to the new rights or to land over which the new rights are or are to be exercisable, according to the requirements of the particular context.

(b) Without prejudice to the generality of paragraph (a) above, in relation to the purchase of new rights in pursuance of subsection (1) above—

- (i) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 2 to this Act;
- (ii) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

(5) The Council may, with or without consideration, release either wholly or partly any new right acquired under this section.

(6) Where the Council have acquired only a new right over or in any land under this section they shall not be required or, except by agreement or during the execution of the works, entitled to fence off or sever that land from the adjoining land.

Disregard of
recent
improvements
and interests.

31. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land or new rights under this Act, the tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land by reason of any building erected, works executed, or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was, at the time of the erecting, executing or making of the building, works, improvement or alteration, directly or indirectly concerned if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration (as the case may be) was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Extinction of
rights affecting
land.

32.—(1) All rights, other than rights of navigation, over or in any land which may be acquired or appropriated by the Council for the purposes of this Act shall, as from the acquisition or appropriation of the land, be extinguished:

Provided that nothing in this subsection shall affect any right vested in, or any main, pipe, wire or other works and apparatus belonging to, any undertaking for the supply of gas or electricity for the purposes of the carrying on of their undertaking.

(2) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Council compensation to be determined in case of dispute by the tribunal.

PART III
—cont.

33.—(1) Any person empowered by the Act of 1965, as applied by this Act, to sell and convey or release lands may, if he thinks fit, subject to the provisions of the Act of 1965, grant to the Council any new right required for the purposes of this Act over or in the lands, not being a new right of water in which some person other than the grantor has an interest.

Grant of new rights by persons under disability.

(2) The provisions of the Act of 1965 with respect to lands and rent-charges, so far as they are applicable, shall extend and apply to any such grant and to any such new right as aforesaid.

34.—(1) The Council may enter into and carry into effect agreements with any person being the owner of, or interested in, either any land adjoining any portion of the work, or any land which may be acquired by the Council under this Act, with respect to the sale by the Council to him (subject to such reservations, restrictions or other provisions as to the Council seem fit) of any land not required for the work.

Agreements with adjoining owners.

(2) The Council may accept as satisfaction for the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Council for the purposes of this Act or any new right so required.

35.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act with respect to his reinstatement.

Power to reinstate owners or occupiers of property.

(2) Any such agreement may provide for the exchange of land; and for that purpose the Council may pay or receive money for equality of exchange.

36. For protection of the owners of proprietary rights of fishing in the non-tidal waters of the river Tawe, but not otherwise, the provisions of section 92 of Schedule 3 to the Water Act 1945 are hereby incorporated with this Act and, as so incorporated, shall have effect as if—

For protection of fisheries.
1945 c. 42.

(a) for references to the owners and occupiers of, and all other persons interested in, any lands or streams taken or used for the purposes of the special Act or injuriously affected, there were substituted references to the owners of proprietary rights of fishing in streams injuriously affected;

(b) references to the undertakers were to the Council.

PART IV

THE UPSTREAM RIVER

Interpretation
of Part IV.

37. In this Part of this Act—

“daily fine” means a fine for each day on which an offence is continued after conviction thereof;

“houseboat” means any vessel or structure not used bona fide for navigation and lying in the water and which is used or intended for use as a place of habitation (whether temporarily, intermittently or permanently) or as a place for accommodating or receiving persons for the purposes of shelter, recreation, entertainment or refreshment, or of viewing regattas or other events, as club premises, as a store or as offices;

“master” means, in relation to any vessel, the person (whether or not the owner) for the time being having command or charge of the vessel;

“local authority” means the West Glamorgan County Council or a community council;

“mooring” includes any buoy, pile, post, chain, pillar or like apparatus or convenience used for the mooring of vessels;

“pleasure boat” means any vessel used wholly or mainly for recreation, not being either a vessel used solely for the carriage of goods for hire or reward, or a vessel used solely as a houseboat, mooring stage or pontoon;

“railway property” means any railway of the British Railways Board and any works connected therewith for the maintenance or operation of which the said board are responsible and includes any lands held or used by the said board for the purposes of such railway or works;

“the upstream river” means so much of the river Tawe and its tributaries as is tidal and as lies downstream of Beaufort Weir (formerly known as Forest Weir) in the city of Swansea and upstream of an imaginary straight line drawn across the river downstream of Work No. 1 between grid reference SS 6659 9251 and grid reference SS 6656 9230; and includes the boat marina at the former South Dock with the outer basin and approach thereto;

“statutory undertakers” means any person authorised by any enactment to carry on an undertaking for the supply of gas, water or electricity;

“works licence” has the meaning given in section 50 (Licensing of works) of this Act.

38.—(1) The powers conferred by section 19 (1) (c) of the Local Government (Miscellaneous Provisions) Act 1976 on the Council to provide facilities for boating—

PART IV
—cont.
General
function as to
upstream
river.

- (a) shall include power to provide pleasure-boats to be let for hire or to convey passengers for hire;
- (b) may be exercised in the upstream river notwithstanding interference with public rights of navigation; and
- (c) shall have effect as if in subsection (3) (a) after the words “any voluntary organisation” there were inserted the words “or other person”.

1976 c. 57.

(2) The lock comprised in Work No. 1 shall be included in facilities provided by the Council under subsection (2) of the said section 19 and charges levied under that subsection with respect to the use of the lock by vessels may include a charge for use by those vessels of the upstream river.

(3) The Council shall not exercise the powers of this section so as unreasonably to interfere with the use, maintenance, repair or renewal of railway property.

39.—(1) A master who navigates his vessel on the upstream river—

General rules
for navigation.

- (a) without due care and attention; or
- (b) in a manner liable to injure or endanger persons, other vessels, the banks of the upstream river (whether above or below the level of mean high-water springs) or any structure or installation in or beside the upstream river;

shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(2) In any proceedings under subsection (1) (b) above, it shall be a defence for the person charged to prove that the action complained of was done in emergency and that it was in all the circumstances a reasonable course of action.

40. If, due to neglect on the part of the owner or master in securing a vessel at moorings, any vessel is adrift in the upstream river, the owner or, as the case may be, the master shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

Vessels adrift.

41.—(1) Whenever any vessel is sunk, stranded or abandoned in the upstream river, or without lawful authority left or moored therein, the Council may after giving (except in an emergency) not less than three months' notice to the owner of the vessel, unless it is not practicable after reasonable inquiry to ascertain the name and address of the owner, raise and remove the vessel.

Removal of
vessels.

PART IV
—cont.

(2) The Council may recover from the owner of any such vessel all expenses reasonably incurred by the Council in respect of the raising, removal and storage thereof or in raising, removing or storing any furniture, tackle and apparel thereof or any goods, chattels and effects raised or removed therefrom.

(3) Subject to subsection (4) below, if any vessel to which subsection (1) above applies be not within six weeks of its removal by the Council proved to the satisfaction of the Council to belong to any claimant it shall together with any such furniture, tackle and apparel vest in the Council.

(4) If within 12 months of its removal a claim is made to the vessel by a person who subsequently proves to the satisfaction of the Council that he is the owner thereof, then the Council shall—

(a) if the vessel is unsold, permit the owner to retake it with any furniture, tackle, apparel, goods, chattels and effects thereon upon payment of the expenses referred to in subsection (2) above; or

(b) if the vessel and the furniture, tackle and apparel thereon have been sold, pay to such owner the amount of the proceeds of such sale after deducting the said expenses, and in case such proceeds shall be insufficient to reimburse the Council such expenses the deficiency may be recovered by the Council.

(5) In this section—

“owner” in relation to any vessel sunk, stranded, abandoned, left or moored as aforesaid means the owner of the vessel at the time of the sinking, stranding, abandonment, leaving or mooring thereof; and

“vessel” includes any part of a vessel.

Removal of
obstructions
other than
vessels.

42.—(1) The Council may remove—

(a) anything, other than a vessel, causing or likely to become an obstruction or impediment to navigation in any part of the upstream river; and

(b) anything causing or likely to become an obstruction or impediment to the proper use of a footpath adjacent to or over the upstream river.

(2) (a) If anything removed by the Council under subsection (1) above is so marked as to be readily identifiable as the property of any person, the Council shall within one month of its coming into their custody give notice, as required by subsection (5) below, to that person and if possession of the thing is not retaken within the period specified in, and if

accordance with the terms of, the notice, it shall at the end of that period vest in the Council.

PART IV
—cont.

(b) If anything removed by the Council under subsection (1) above which is not so marked is not within three months of its coming into the custody of the Council proved to their reasonable satisfaction to belong to any person, it shall thereupon vest in the Council.

(3) The Council may at such time and in such manner as they think fit dispose of anything referred to in subsection (2) (b) above which is of a perishable nature or the custody of which involves unreasonable expense or inconvenience notwithstanding that it has not vested in the Council under this section, and if it is sold the proceeds of sale shall be applied by the Council in payment of the expenses incurred by them under this section in relation to the thing, and any balance—

(a) shall be paid to any person who, within three months from the time when the thing came into the custody of the Council, proves to the reasonable satisfaction of the Council that he was the owner thereof at that time; or

(b) if within the said period no person proves his ownership at the said time, shall vest in the Council.

(4) If anything removed under this section—

(a) is sold by the Council and the proceeds of sale are insufficient to reimburse them for the amount of the expenses incurred by them in the exercise of their powers of removal; or

(b) is unsaleable;

the Council may recover the deficiency or the whole of the expenses, as the case may be, from the person who was the owner at the time when the thing removed came into the custody of the Council or who was the owner at the time of its abandonment or loss.

(5) A notice given under subsection (2) (a) above shall specify the thing removed and state that, upon proof of ownership to the reasonable satisfaction of the Council, possession may be retaken at a place named in the notice within the time specified in the notice, being not less than 14 days after the date when the notice is served.

(6) The Council shall not under the powers of this section remove anything placed or constructed—

(a) by Associated British Ports, the British Railways Board, a local authority or statutory undertakers under or in pursuance of any enactment; or

(b) by the water authority in the exercise of any of their functions; or

PART IV
—cont.

(c) by the British Railways Board for the protection of railway property;

and the powers of subsection (1) (b) above shall not be exercised with respect to any private footpath vested in Associated British Ports, except with their consent.

Removal of
projections.

43.—(1) In this section “projection” means anything which projects over the upstream river or any footpath adjoining the upstream river and includes stairs and any tree, bush or other plant but does not include any such thing authorised by or under statute or by a works licence to be placed or constructed.

(2) (a) If any projection is a danger to the navigation of the upstream river or to persons using any footpath adjoining the same, the Council may remove it and recover the expenses of removal from the owner or occupier of the land on which the projection was situated.

(b) Before exercising their powers under this subsection the Council shall, if it is reasonably practicable to do so, give notice of their intention to the owner and occupier of the land on which the projection is situated.

(c) In proceedings to recover expenses under paragraph (a) above the court may inquire whether the Council might reasonably have proceeded instead under subsection (3) below, and, if the court determines that the Council might reasonably have proceeded instead under that subsection, the Council shall not recover the expenses.

(3) If any projection is an obstruction or inconvenience to the navigation of the upstream river, but not a danger thereto, the Council may by notice require the owner or occupier of the land on which the projection is situated to remove the projection within such time, not being less than 7 days, as may be specified in the notice.

(4) Nothing in this section shall enable the Council, without the consent of the water authority or, as the case may be, Associated British Ports, to remove or require the removal of any projection provided or maintained by them in the exercise of any of their functions.

Repair of
landing places
and
embankments.

44. Without prejudice to section 43 (Removal of projections) of this Act, the Council may by notice require the owner or occupier of a landing place or embankment which in the opinion of the Council is, or is likely to become, by reason of its insecure condition or want of repair—

(a) dangerous to persons or vessels using the upstream river;

(b) injurious to the condition of the upstream river as a navigable waterway; or

PART IV
—cont.

(c) a hindrance to the navigation of the upstream river; to remedy its condition to the satisfaction of the proper officer of the Council within a reasonable time specified in the notice.

45.—(1) The provisions of section 290 of the Public Health Act 1936 (appeals against and enforcement of notices as to execution of works) shall apply to notices given by the Council under subsection (3) of section 43 (Removal of projections) and section 44 (Repair of landing places and embankments) of this Act as they apply to the notices mentioned in subsection (1) of that section.

Default powers in respect of sections 43 and 44. 1936 c. 49.

(2) A notice under subsection (3) of the said section 43 or under the said section 44 shall have annexed to it a copy of the said section 43 or 44, as the case may be.

46.—(1) The conditions upon which the Council may grant licences for pleasure-boats and pleasure-vessels under section 94 of the Public Health Acts Amendment Act 1907 include conditions requiring the licensee to insure to the satisfaction of the Council against claims arising from the death or bodily injury of any person resulting from an accident in which the boat or vessel is involved.

Power to license hire-pleasure-boats. 1907 c. 53.

(2) Nothing in subsection (3) of the said section 94 (which as amended by section 18 (2) of the Local Government (Miscellaneous Provisions) Act 1976, requires the person in charge of a boat or vessel or a person navigating it to be licensed) shall apply to such a person if he is in charge of or navigating the boat or vessel in the upstream river for purposes other than profit.

1976 c. 57.

(3) A licence under the said section 94 shall not be required—

(a) for a boat or vessel in the upstream river which has a passenger steamer's certificate issued under section 274 of the Merchant Shipping Act 1894 which is valid for the voyage intended, nor for a hovercraft in the upstream river registered in the United Kingdom; or

1894 c. 60.

(b) for the person in charge of such a vessel or hovercraft or other person navigating it.

47.—(1) It shall not be lawful without the consent of the Council to moor, place, keep or maintain any houseboat on the upstream river (whether or not the houseboat shall have been so moored or placed before the passing of this Act) unless a

Unregistered houseboats prohibited.

PART IV
—cont.

registration certificate in relation to it is then in force and any conditions contained in such certificate are complied with.

(2) Nothing in subsection (1) above shall prejudice or affect any obligation under any enactment to obtain the consent thereto of any authority within whose area the houseboat is or is proposed to be moored, placed, kept or maintained.

(3) (a) If any houseboat shall be moored, placed, kept or maintained contrary to the provisions of subsection (1) above the Council may by notice in writing require the person having control of the houseboat to remove or demolish it and to clear and restore the bed and banks of that part of the upstream river from or on which the houseboat has been removed or demolished or to comply with the conditions imposed.

(b) Any such notice—

(i) shall be given by leaving it or sending it in a prepaid letter by the recorded delivery service addressed to the person having control of such houseboat at his usual or last known residence or (if it is not practicable after reasonable inquiry to ascertain the name and address of such person) by exhibiting the same in a conspicuous position on such houseboat; and

(ii) shall specify the period (not being less than two months) within which such removal or demolition and clearance and restoration, or compliance with conditions, shall be completed.

(4) (a) If any person fails without reasonable cause to comply with any notice under subsection (3) above—

(i) he shall be liable on summary conviction to a fine not exceeding level 2 on the standard scale and to a daily fine not exceeding £10; and

(ii) the Council may, at any time after the expiration of the period specified in such notice, remove or demolish the houseboat referred to therein and clear and restore the bed and banks of the upstream river disturbed by such removal or demolition.

(b) The effect of paragraph (a) above shall be stated in every such notice.

(c) Subject to the provisions of subsection (5) below, the expenses reasonably incurred by the Council in or in connection with any such removal or demolition and clearance and restoration, may be recovered by the Council from the person having the control of such houseboat.

(5) (a) In the event of any houseboat being so removed or demolished by the Council, they may retain the same or the materials thereof and may, and shall if so required by the

owner, sell or dispose of the same or of such materials and subject as hereinafter provided retain the proceeds of such sale or disposal.

PART IV
—cont.

(b) For the purpose of ascertaining the amount recoverable by the Council under subsection (4) (c) above, credit shall be given for the net amount (if any) received by the Council of the proceeds of the sale or disposal (after deduction of any expenses incurred by the Council in effecting the same) of the houseboat or the materials thereof. If such net amount shall exceed the amount of the expenses incurred by the Council in or in connection with such removal or demolition, or clearance and restoration, as aforesaid, they shall pay the amount of such excess to the owner of the houseboat.

(6) For the purposes of this section the owner of any houseboat shall, until the contrary be proved, be deemed to be the person having the control of it.

48.—(1) The Council, on payment to them for the registration of any houseboat of the charge prescribed under section 49 (Charges for registration of houseboats) of this Act and delivery on a form to be supplied by them of the particulars which are set out in Schedule 3 to this Act together with such additional information as the Council may reasonably from time to time require, may, subject to such conditions (including conditions relating to the prevention of pollution) as they think fit—

- (a) assign to such houseboat a number, which shall be displayed thereon;
- (b) register such houseboat in a register to be kept by them;
- (c) issue to the applicant a registration certificate in respect of such registration bearing the number assigned to such houseboat.

(2) The Council shall not refuse registration in accordance with subsection (1) above as respects any houseboat stationed on the upstream river on 4th December 1984 for its mooring, placing, keeping and maintaining in the station in which it was positioned on that day but any registration of a houseboat by virtue of this subsection shall be subject to such conditions relating to the prevention of pollution as the Council see fit to impose and to compliance with the terms of all enactments relating to the upstream river.

49. There shall be paid to the Council for the registration of any houseboat on the upstream river and for every renewal of the registration certificate such reasonable charge as the Council may from time to time prescribe.

Charges for
registration of
houseboats.

PART IV
—cont.
Licensing of
works.

50.—(1) (a) The Council may, upon such terms and conditions as they think fit and upon payment of such reasonable fee as may from time to time be prescribed by the Council, grant to any person a licence (in this Part of this Act referred to as a “works licence”) to construct, alter, renew, extend or maintain any works in or on the upstream river or involving the cutting of any of the banks of the upstream river notwithstanding interference with public rights of navigation and other public rights by such works as constructed, altered, renewed, extended or maintained.

(b) Before in any case granting a works licence as respects works which will or may affect any works of Associated British Ports or which will or may affect the regime of the river Tawe downstream of Work No. 1, the Council shall consult Associated British Ports.

(2) Application for a works licence shall be made in writing to the Council and shall be accompanied by plans, sections and particulars of the works to which the application relates, and in granting any such licence the Council may require modifications in the plans, sections and particulars so submitted.

(3) If within three months from the date of the making of an application under subsection (2) above, the Council do not grant a works licence in accordance with the application, they shall be deemed to have refused the application.

(4) If required by notice in writing by an applicant for a works licence within 7 days after the Council notify the applicant of their decision, or the date on which the Council are under subsection (3) above deemed to have refused the application (each being hereinafter in this section called “the date of the decision”), the Council shall within 14 days from the receipt of such notice give to the applicant a statement of their reasons for the decision.

(5) Any applicant for a works licence who is aggrieved by—

- (a) the refusal of the Council to grant the licence;
- (b) any terms or conditions upon which the licence is granted;
- (c) any modifications required by the Council in the plans, sections and particulars submitted by the applicant;

may, within 28 days after the date of the decision appeal to the Secretary of State, whose decision shall be binding upon the parties.

(6) A person who appeals to the Secretary of State under this section shall give to the Council notice of his appeal accompanied by a copy of his statement of appeal and the Council shall within 28 days from the giving of such notice be

entitled to give in writing to the Secretary of State their observations on the appeal.

PART IV
—cont.

(7) On an appeal under this section the Secretary of State may—

(a) dismiss the appeal; or

(b) require the Council either—

(i) to grant the licence upon such terms and conditions as the Secretary of State may determine; or

(ii) to approve the plans, sections and particulars without modifications or subject to such modifications as the Secretary of State may determine;

not being terms, conditions or modifications more onerous than those imposed by the Council; and the Council shall give effect to any requirement made by the Secretary of State under this subsection.

51.—(1) No person other than the Council shall construct, alter, renew or extend any works in or on the upstream river or involving the cutting of any of the banks of the upstream river (other than moorings laid down for pleasure-boats) unless he is licensed so to do by a works licence and except upon the terms and conditions (if any) upon which the licence is granted and in accordance with the plans, sections and particulars prescribed by the licence; but this subsection shall not apply to—

Restriction on construction of works.

(a) the construction, alteration, renewal or extension of any works specifically authorised by any enactment or of any works executed by a highway authority under any enactment;

(b) the renewal of any work in existence at the date of the coming into operation of this Part of this Act.

(2) Any person who knowingly contravenes this section or who knowingly contravenes or fails to comply with any term or condition upon which a works licence is granted by the Council shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(3) The Council may by notice require a person who contravenes this section to remove or abate within a reasonable time specified in the notice any works to which the contravention relates and to restore the site thereof to its former condition and, if the person to whom the notice is given fails to comply with the notice, the Council may carry out the work required by the notice and recover the cost of so doing from that person.

PART IV
—cont.

(4) A works licence shall not be required under this section for the construction, alteration, renewal or extension of any work—

- (a) by the water authority in the exercise of any of their functions;
- (b) by Associated British Ports if the work is situate on land owned by them on the banks of the upstream river above the level of high-water springs;
- (c) by the South Wales Electricity Board in exercise of their statutory powers.

Powers as to
moorings, etc.

52.—(1) The Council may provide, lay down, maintain and use moorings in the upstream river or on the banks adjoining the upstream river, on land owned or leased by the Council or in which they hold an appropriate interest, or on any other land with the consent in writing of the owner and lessee thereof.

(2) The Council may recover in respect of any vessel or houseboat using any of the moorings provided by the Council under this section or moored to land owned or leased by the Council in or adjoining the upstream river such reasonable charges as they may from time to time prescribe.

(3) The Council may compound with any person with respect to the payment of the charges prescribed under this section.

(4) The Council may, having regard to the requirements of safe and unobstructed navigation, grant licences (which may be given on such terms or conditions or subject to compliance with such requirements as the Council think fit) to any person to lay down, maintain and use existing and future moorings in the upstream river or on the banks thereof; but—

- (a) nothing in any such licence shall entitle a person to place, lay down, maintain, use and have any mooring on land not owned or leased by him or by the Council or in which he has no appropriate interest;
- (b) the Council shall not unreasonably refuse to grant a licence—

(i) to an owner or lessee of any land not leased by the Council with respect to a mooring on that land; or

(ii) with respect to a mooring on the banks of the upstream river which is positioned above the level of mean high-water springs and existing at the date of the coming into operation of this Part of this Act and any question whether the grant of a licence has been so unreasonably refused or whether the

conditions of the licence are unreasonable shall be referred to and determined by the Secretary of State.

PART IV
—cont.

(5) Notwithstanding anything in subsection (4) above, the Council shall not grant any such licence with respect to a mooring downstream of Work No. 1, except with the consent of Associated British Ports or with respect to a mooring within a radius of 45 metres upstream or downstream from the nearest end of the longitudinal centre line of the fish pass forming part of Work No. 1 or within 45 metres downstream from the Beaufort Weir.

(6) Subject to subsection (5) above, in any case to which both sub-paragraphs (i) and (ii) of subsection (4) (b) above apply, the Council shall not refuse to grant a licence and any question whether the grant of a licence has been made subject to unreasonable conditions shall be referred to and determined by the Secretary of State.

(7) Any licence granted under subsection (4) above shall be valid only for such period not exceeding three years commencing with its date as may be specified in the licence.

(8) The Council may charge a reasonable fee for granting a licence under the said subsection (4).

(9) Any person who—

(a) without reasonable excuse causes a vessel other than a houseboat to be moored except at a mooring provided or licensed by the Council under this section or causes a houseboat to be moored except at a mooring to which it is assigned under the terms of its registration then in force under section 48 (Registration of houseboats) of this Act; or

(b) lays down, maintains or uses any mooring not so provided or licensed or not so assigned;

shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 2 on the standard scale.

(10) If any person contravenes subsection (9) (b) above the Council may remove the mooring in question and recover from that person the expenses incurred in doing so.

53.—(1) The Council may make byelaws in connection with this Part of this Act for all or any of the following purposes:—

Byelaws.

(a) for securing the conservation and improvement of the upstream river and its amenities (including fisheries) for the purposes of recreation, for prohibiting or regulating swimming or other recreational activities and for promoting the ease, convenience and safety of navigation;

(b) for the regulation and management of the navigation of the upstream river and for the prevention of obstructions to such navigation;

PART IV
—cont.

- (c) for the regulation and control of the navigation and speed of vessels on the upstream river;
 - (d) for requiring the registration of, or of any class of, pleasure-boats, for the renewal of registration, for revocation of registration in specified circumstances and for prohibiting the use or navigation of the upstream river by pleasure-boats which are not registered with the Council;
 - (e) for classifying pleasure-boats whether for the purposes of registration or for the purposes of the application of any byelaws of the Council;
 - (f) for the government, good order and regulation of persons navigating the upstream river or using the landing places, stages or pontoons, whether for business, recreation, training or any other purpose;
 - (g) for prescribing precautions for the prevention of fire and precautions to be taken in cases of fire or accident occurring in or to any vessel;
 - (h) for prescribing the conditions on which vessels in which sleeping accommodation is provided (whether or not being houseboats) shall be allowed on the upstream river and prohibiting the mooring of such vessels and houseboats for overnight use on the upstream river except at places approved by the Council or unless suitable and sufficient sanitary conveniences exist or are provided upon the land adjacent to the point of mooring for the use of the occupants of such vessels and houseboats;
 - (i) for regulating the launching of vessels within the upstream river, the placing, maintenance and use of moorings and the use of pontoons, slipways and landing places;
 - (j) for securing the safety of vessels and persons using, and of property within, the upstream river;
 - (k) for preventing damage to any land or property of the Council situated in or about the upstream river;
 - (l) for the preservation of flora and fauna in, or on the banks of, the upstream river;
 - (m) for regulating the passage of vessels, or any class of vessels, through the lock or over the barrage comprised in Work No. 1, either generally or in circumstances prescribed by the byelaws.
- (2) Byelaws made under subsection (1) (d) above may authorise the Council—
- (a) to make charges in respect of the registration of pleasure-boats including different charges for the

use of the upstream river by boats of different descriptions;

PART IV
—cont.

- (b) to attach conditions to the registration of such boats, and to make such registration revocable in circumstances specified in the byelaws;
- (c) to grant exemptions from the requirements of such registration;
- (d) to inspect pleasure-boats by or on behalf of the Council in connection with their registration; and
- (e) to require notice of the transfer or sale of any pleasure-boat so registered to be given to the Council.

(3) Nothing in any byelaws made under the said subsection (1) (d) shall require the registration of—

- (a) any newly constructed or newly restored launch in respect of any bona fide trial trip of such launch on the upstream river; or
- (b) any pleasure-boat in respect of its being moved from any boat builder's yard on the upstream river to any other place thereon with a view to its immediate removal from the upstream river; or
- (c) any pleasure-boat for the purpose of its participation in any regatta or boat race:

Provided that not less than 48 hours' notice in writing is given to the Council of the intention to make such trip, move such boat or use it in such regatta or boat race, and any conditions specified by the Council in that behalf are complied with.

(4) Any charge payable in respect of a certificate of registration issued under byelaws made under this section shall be recoverable by the Council from the owner of the pleasure-boat so registered or other person who has applied for its registration.

(5) Byelaws made under this section may relate to the whole of the upstream river and the banks thereof, or to any part thereof, and may make different provisions for different parts.

(6) Byelaws made by the Council under this section may provide for the imposition of a fine on summary conviction not exceeding level 3 on the standard scale and, in the case of a continuing offence, a daily fine not exceeding £40.

(7) Any person offending against or committing any breach or contravention of any byelaw made under this section may be required by the court in addition to any fine thereby incurred, to pay to the Council a sum in satisfaction of the cost of repairing or making good any damage occasioned thereby to the property of the Council; and the provisions of section 41 of the Administration of Justice Act 1970 (recovery of 1970 c. 31.

PART IV
—cont.

compensation awarded) shall apply to any sum required to be paid pursuant to this section as they apply in the cases specified in Part I of Schedule 9 to that Act.

(8) Nothing in any byelaws made under this section shall restrict, prevent, interfere with or prejudice the construction, maintenance, repair, renewal or use of railway property.

(9) The Secretary of State may confirm the byelaws in the form submitted to him or with such modifications as he thinks fit:

Provided that where the Secretary of State proposes to make a modification which appears to him to be substantial, he shall inform the Council and require them to take any steps he considers necessary for informing persons likely to be concerned with the modification, and shall not confirm the byelaws until such period has elapsed as he thinks reasonable for consideration of, and comment upon, the proposed modification by the Council and by other persons who have been informed of it.

Power to
refuse or
cancel
registration.

54.—(1) If after receiving and considering any complaint made to the Council respecting the navigation or use on the upstream river of any pleasure-boat registered under byelaws made under section 53 (Byelaws) of this Act or if, after receiving and considering a report from any of their officers authorised to examine and who shall have examined any such pleasure-boat, the Council are of opinion that in the interest of the safety of navigation or of the amenity of the upstream river such pleasure-boat should not be registered or continue to be registered, the Council may, notwithstanding anything contained in this Act or in any byelaws made thereunder, refuse to register such pleasure-boat or may cancel the certificate of registration thereof and thereupon such certificate shall cease to be of any force.

(2) Before so refusing to register a pleasure-boat or cancelling the certificate of registration thereof, the Council shall give to the person applying for registration or, in the case of a cancellation, the person in whose name a pleasure-boat is registered, an opportunity of appearing before and of being heard by a committee of the Council and, if so required by him, the Council shall within 7 days of their decision give to him a statement of the grounds upon which it is based.

1936 c. 49.

(3) Any such owner aggrieved as to the reasonableness of any such refusal or cancellation may appeal to a magistrates' court and sections 300 to 302 of the Public Health Act 1936 shall apply in respect of any such appeal.

Power to
require
information,
entry, etc.

55.—(1) On demand by a police officer or any proper officer of the Council producing his authority, the master of any

pleasure-boat on the upstream river shall produce to such officer any certificate of registration, or licence for the boat to be let or used for hire, issued in respect of the boat; and on the like demand by such an officer—

PART IV
—*cont.*

(a) the master of any pleasure-boat on the upstream river shall give to the officer particulars of the names and addresses known to him of any person on board the boat;

(b) the owner of any pleasure-boat on the upstream river shall give to the officer particulars of the name and address of any person at any time specified by the officer as acting as master of the boat;

being particulars or information needed for the purposes of any function conferred on the Council under any enactment and concerning the upstream river.

(2) A person who fails without reasonable excuse to give information demanded under subsection (1) above or, in giving it, makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular, shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 2 on the standard scale.

(3) Any proper officer of the Council authorised in writing in that behalf may at any reasonable time—

(a) enter upon any land or vessel for the purpose of—

(i) performing any function conferred on the Council or that officer by virtue of this Part of this Act; or

(ii) determining whether, and if so in what manner, such a function should be performed; or

(iii) determining whether any provision of this Part of this Act or of an instrument made by virtue of this Part is being complied with;

(b) carry out such inspections, measurements and tests of any vessel or of any articles on it and take away such samples of the articles as he considers appropriate for such a purpose;

but the powers of this subsection as to entry on to land shall not be exercised except for the purposes of sections 43 (Removal of projections), 44 (Repair of landing places and embankments), 47 (Unregistered houseboats prohibited), 51 (Restriction on construction of works), 52 (Powers as to moorings, etc.) and 53 (Byelaws) of this Act.

(4) The provisions of subsections (2), (3) and (4) of section 91 and section 92 of the Control of Pollution Act 1974 (as to rights 1974 c. 40.

PART IV
—cont.

of entry and inspection and provisions supplemental thereto) shall with necessary modifications apply and have effect for the purposes of subsection (3) above as those provisions apply and have effect for the purposes of section 91 (1) and other provisions of that Act.

(5) Nothing in subsection (3) above shall authorise entry upon any operational land of the water authority or Associated British Ports without the consent of the water authority or, as the case may be, of Associated British Ports.

1971 c. 78.

(6) In this section “operational land” has the same meaning as in section 222 of the Town and Country Planning Act 1971.

Temporary
closure of
upstream
river.

56.—(1) The Council may temporarily prohibit, restrict or regulate the use or navigation of the upstream river or any part thereof to facilitate the holding of any boat race or regatta or of any other function in connection with the use of the upstream river as a place of recreation:

Provided that the Council shall not so prohibit the use or navigation of any part of the upstream river for more than one half-hour in any period of one hour or for more than eight periods each of one half-hour in any period of 24 hours.

(2) (a) Before exercising their powers under subsection (1) above the Council shall consult Associated British Ports and, following such consultation, shall give notice of the proposal to exercise the powers by advertisement in one or more local newspapers circulating in the city of Swansea.

(b) The notice shall be published not less than one month before the powers are to be exercised and shall state the extent to which, the period during and the purpose for which the use or navigation of the upstream river is to be prohibited, restricted or regulated.

(3) A copy of the notice published under subsection (2) above shall be conspicuously displayed in such one or more places on or adjacent to the upstream river or the part thereof to which it relates as the Council consider appropriate for bringing its contents to the notice of persons using or navigating the upstream river.

(4) In the exercise of the powers of this section the Council shall—

(a) before in any case publishing in accordance with subsection (2) above a notice affecting navigation in the vicinity of the bridge (within the meaning of section 62 (For protection of British Railways Board) of this Act), give notice to the principal office of the British Railways Board;

- (b) in cases of emergency and notwithstanding the temporary closure of the upstream river or any part thereof afford all reasonable facilities to the said board for gaining access by means of the upstream river to their railways, bridges and works;
- (c) not prohibit or restrict the use on the upstream river by the said board of any vessels or floating pontoons which are being used in connection with the construction, maintenance, repair or renewal of any railway bridge over the upstream river or the footings, foundations or piers thereof.

57. A list showing the charges prescribed pursuant to sections 38 (General function as to upstream river) and 49 (Charges for registration of houseboats) and under byelaws made under subsection (2) (a) of section 53 (Byelaws) of this Act, for the time being in force under this Part of this Act, shall be displayed at one or more convenient places on or adjacent to the upstream river and a copy of the list shall be supplied by the Council on request to any person appearing to have an interest.

List of
charges.

58. The Council may at its discretion remit or reduce any charge shown in the list referred to in section 57 (List of charges) of this Act in respect of any vessel or houseboat used for charitable purposes or for purposes which the Council consider merit remission or reduction of the charge.

Provision for
charitable or
other bodies.

59. For the protection of the water authority the following provisions shall, unless otherwise agreed in writing between the Council and the water authority, apply and have effect:—

For further
protection
of water
authority.

- (1) Nothing in section 41 (Removal of vessels) of this Act shall apply to any vessel owned by the water authority and used by them for the purpose of any of their functions;
- (2) Except in case of emergency, the Council shall give notice in writing to the water authority of any proposal to raise and remove a vessel under the said section 41 and shall not raise and remove the vessel except in accordance with such reasonable requirements (including a requirement as to supervision of the removal) as may be specified by the water authority within 14 days after the date of the notice:

Provided that in case of emergency the Council shall give the water authority such notice of the intention to exercise, or, as the case may be, the exercise of, the powers of the said section as is reasonably practicable and the provisions of this paragraph shall apply so far as reasonably practicable in the circumstances:

PART IV
—cont.

- (3) Except in case of emergency, before exercising the powers of section 42 (Removal of obstructions other than vessels), section 43 (Removal of projections) or section 45 (Default powers in respect of sections 43 and 44) of this Act the Council shall consult the water authority and shall comply with any reasonable requirements which may be made by the water authority for preventing pollution of any watercourse or detriment to land drainage or to safeguard a watercourse against damage:

Provided that in case of emergency the Council shall give to the water authority such notice of the intention to exercise, or, as the case may be, the exercise of, any of the said powers as is reasonably practicable and the provisions of this paragraph shall apply so far as reasonably practicable in the circumstances:

- (4) (a) Nothing in section 44 (Repair of landing places and embankments) of this Act shall apply to any flood embankments or other works of the water authority;
- (b) Except in case of emergency, not less than 28 days before requiring action under the said section 44 the Council shall give notice to the water authority of the action intended together with reasonable particulars thereof and shall, in requiring such action, comply with such requirements of the water authority as are notified by that authority to the Council within the said 28 days, being requirements reasonably necessary to prevent pollution of any watercourse, to safeguard it against damage or to secure that its efficiency for land drainage purposes is not impaired, or requirements reasonably necessary to safeguard other works of the water authority;
- (c) In case of emergency the Council shall give to the water authority such notice and particulars under sub-paragraph (b) above as are reasonably practicable and the provisions of that sub-paragraph shall apply so far as reasonably practicable:
- (5) Nothing in the said section 44 or in sections 47 (Unregistered houseboats prohibited), 48 (Registration of houseboats), 50 (Licensing of works) or 52 (Powers as to moorings, etc.) of this Act shall relieve any person of the obligation to obtain consent under section 29 of the Land Drainage Act 1976 (which requires the consent of the water authority to the erection of any structure in, over or under a watercourse which is designated as main river) or any other licence or consent required under any enactment, and nothing in the said sections 47 and 52

shall relieve any person of the obligation to moor vessels in accordance with byelaws having effect under the said Act of 1976:

PART IV
—*cont.*

- (6) The Council and the water authority shall each give the other notice in writing of any application for registration of a houseboat under the said section 48 or for consent under the said section 47 or under byelaws having effect under the Land Drainage Act 1976 relating to the mooring of houseboats:

1976 c. 70.

- (7) (a) On receipt of application for a works licence under the said section 50 the Council shall serve on the water authority a copy of the application and all plans, sections and particulars incident thereto;

- (b) The Council shall consider such observations as the water authority may submit to the Council within six weeks after service on the water authority of the application and particulars as aforesaid, and shall not grant a works licence before the expiry of that period;

- (c) In granting any works licence in response to such an application the Council shall impose on the applicant such terms and conditions as give effect to such reasonable requirements to prevent pollution of any watercourse, to safeguard it against damage or to secure that its efficiency for land drainage purposes is not impaired, as the water authority may, within the said period, make in any observations to the Council:

- (8) If by reason of the carrying out by the Council of works or operations in exercise of any of the powers of the said sections 41, 42, 43, 45 or subsection (4) (a) of section 47 (Unregistered houseboats prohibited) or subsection (1) of section 52 (Powers as to moorings, etc.) of this Act, a watercourse or any of the banks of a watercourse is damaged or the efficiency of a watercourse for land drainage purposes is impaired, and the water authority take such steps as are reasonable—

(a) to make good the watercourse to restore it to its former standard of efficiency; or

(b) where necessary, to construct some other work in substitution therefor;

they may recover from the Council the reasonable cost of so doing (including a proper proportion of the overhead charges of the water authority) and any such cost of executing works needed for remedying any subsidence of the substituted work during such reasonable period as may be agreed between the Council and the water authority, or failing agreement, settled by arbitration:

PART IV
—cont.

1976 c. 70.

Provided that nothing in this paragraph shall apply to the erection of any structure or the carrying out of any work of alteration or repair of a structure in accordance with a consent of the water authority given under section 29 of the Land Drainage Act 1976:

- (9) If the water authority have reasonable ground for believing that a watercourse or any of the banks of a watercourse is likely to be damaged or the efficiency of a watercourse for land drainage purposes is likely to be impaired in any of the circumstances mentioned in the last foregoing paragraph, they may carry out such protective works as may be agreed between them and the Council or as, failing agreement, may be settled by arbitration, and recover the reasonable cost thereof (including a proper proportion of the overhead charges of the water authority) from the Council:
- (10) A copy of every notice required to be published by subsection (2) of section 56 (Temporary closure of upstream river) of this Act shall be given to the water authority not later than the date of first publication of the notice:
- (11) Not less than two months before—
 - (i) the Council make, amend or revoke any byelaws under section 53 (Byelaws) of this Act; or
 - (ii) the water authority make, amend or revoke any byelaws applying to any part of the river Tawe under any enactment;
 the Council or, as the case may be, the water authority shall give notice of their intention to the other of them and shall consider any written representations made by that other within the said period of two months:
- (12) Any difference arising between the water authority and the Council under this section other than paragraph (11) shall be determined by arbitration.

For protection
of South
Wales
Electricity
Board.

60.—(1) Except as may be otherwise agreed in writing with the board, the Council or any person acting on the requirement of or under licence granted by the Council shall not in the exercise of the relevant powers damage, injuriously affect or interfere with any apparatus; but this section shall apply only with respect to apparatus particulars of the position and character of which have been supplied to the Council by the board.

(2) In this section—

“apparatus” means any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the board and includes

1882 c. 56.

any works constructed for the lodging therein of apparatus;

PART IV
—cont.

“the board” means the South Wales Electricity Board;

“the relevant powers” means the powers of sections 41 (Removal of vessels), 44 (Repair of landing places and embankments), 50 (Licensing of works) and 52 (Powers as to moorings, etc.) of this Act.

PART V GENERAL

61.—(1) In their application to development authorised by this Act, Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to such development begun within 10 years after the passing of this Act.

Modification
of Town and
Country
Planning
General
Development
Order 1977.
S.I. 1977/289.

(2) For the purposes of Article 3 of, and Class XVIII B in Schedule 1 to, the said Order of 1977 (which permit development by dock, pier, harbour, water transport, canal or inland navigation undertakers) the Council shall, in relation to the undertaking established by them under Part IV (The upstream river) of this Act, be deemed to be undertakers carrying on an undertaking within the description of that class.

62. For the protection of the British Railways Board the following provisions shall, unless otherwise agreed in writing between the Council and the board, apply and have effect:—

For
protection of
British
Railways
Board.

(1) In this section—

“the board” means the British Railways Board;
and

“the bridge” means the railway bridge carrying the South Wales main line of the board over the upstream river and includes the footings, foundations and piers thereof and the adjoining embankments of the railway incident to that bridge:

(2) Notwithstanding the provisions of section 7 (Dredging and other operations in river Tawe) of this Act, the Council shall not, without the consent of the board carry out any works of dredging, scouring or cleansing which may result in any injury to the bridge or which may in any way affect the bridge or the operation of the railway carried by the bridge:

PART V
—cont.

- (3) Notwithstanding the provisions of section 28 (Power to acquire lands) and section 30 (Power to acquire new rights only) of this Act the Council shall not acquire compulsorily the footings, foundations or piers supporting the bridge, or any new rights relating thereto:
- (4) On receipt of an application for a works licence under section 50 (Licensing of works) of this Act involving the execution of works which are in the vicinity of or which may in any way affect the bridge or the operation of the railway carried by the bridge, the Council shall serve on the board a copy of the application and all plans, sections and particulars incident thereto:
- (5) The Council shall consider such observations as the board may submit to the Council within six weeks after the service on the board of the application and particulars as aforesaid, and shall not grant a works licence before the expiry of that period:
- (6) In granting a works licence in response to such an application the Council shall impose on the applicant therefor such reasonable terms and conditions as the board may within the said period request in any observations by the board made to the Council:
- (7) Any difference which may arise between the Council and the board under this section shall be settled by arbitration.

Arbitration.

63. Where under this Act any difference is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties, or, failing agreement, to be appointed on the application of either party after notice in writing to the other, by the President of the Institution of Civil Engineers.

SCHEDULES

SCHEDULE 1

Section 25.

ENACTMENTS REPEALED

Chapter (1)	Short title (2)	Repeals (3)
17 & 18 Vict. c. cxxvi.	Swansea Harbour Act 1854.	Section 79 (New cut not to be closed by gates, &c.). Section 88 (Penalty on conveying persons across the river Tawe within one mile of Pottery bridge).

SCHEDULE 2

Section 30.

ADAPTATION OF PART I OF THE ACT OF 1965 IN CONNECTION WITH PURCHASE OF NEW RIGHTS

1. In the Act of 1965 (hereinafter in this Schedule referred to as "the Act") for section 7 (which relates to compensation) there shall be substituted the following:—

"7.—(1) In assessing the compensation to be paid by the Council under this Act regard shall be had not only to the extent, if any, to which the value of the land over or in which the right is purchased is depreciated by the purchase but also to the damage, if any, to be sustained by the owner of the land by reason of injurious affection of other land of the owner by the exercise of the right.

(2) The modifications subject to which subsection (1) of section 44 of the Land Compensation Act 1973 is to have effect, 1973 c. 26. as applied by subsection (2) of that section to compensation for injurious affection under this section, are that for the words 'land is acquired or taken' there shall be substituted the words 'a right over or in land is purchased' and for the words 'acquired or taken from him' there shall be substituted the words 'over or in which the right is exercisable'."

2. The following provisions of the Act (which state the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land), namely:—

section 9 (4) (failure of owners to convey);
paragraph 10 (3) of Schedule 1 (owners under incapacity);
paragraph 2 (3) of Schedule 2 (absent and untraced owners); and
paragraphs 2 (3) and 7 (2) of Schedule 4 (common land);

SCH. 2
—cont.

shall be so modified as to secure that as against persons with interests in the land which are expressed to be overridden by the deed, the right which is to be purchased compulsorily is vested absolutely in the Council.

3. Section 11 (powers of entry) of the Act shall be so modified as to secure that as from the date on which the Council have served notice to treat in respect of any right, they have power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (penalty for unauthorised entry) and 13 (entry on sheriff's warrant in the event of obstruction) of the Act shall be modified correspondingly.

4. Section 20 (compensation for short-term tenants) of the Act shall apply with the modifications necessary to secure that persons with such interests as are mentioned in that section are compensated in a manner corresponding to that in which they would be compensated on a compulsory acquisition of the interests but taking into account only the extent (if any) of such interference with such interests as is actually caused, or likely to be caused, by the exercise of the right in question.

5. Section 22 (protection of acquiring authority's possession of land where by inadvertence an interest in the land has not been purchased) of the Act shall be so modified as to enable the Council, in circumstances corresponding to those referred to in that section, to continue to be entitled to exercise the right in question, subject to compliance with that section as respects compensation.

SCHEDULE 3

Section 48. PARTICULARS TO BE SUPPLIED FOR REGISTRATION OF HOUSEBOATS

Name (if any) of houseboat;

Length of houseboat;

Period for which registration certificate required;

Precise location of proposed mooring of houseboat;

Name and address of owner;

Name and address of applicant for registration;

Interest (if owner and applicant not the same) of applicant in houseboat;

Signature of applicant for registration.

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CHAPTER vii

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